

Tentative Rulings for Department 502

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Tentative Ruling

Re: ***Perez v. Perez et al.***
Superior Court Case No. 23CECG00025

Hearing Date: August 19, 2026 (Dept. 502)

Motion: (1) By Defendants to Bifurcate
(2) By Plaintiff For Leave to File Fourth Amended Complaint
(3) By Plaintiff for Preliminary Injunction

Tentative Ruling:

(1) To grant and bifurcate trial such that the affirmative defense of waiver is heard before trial of plaintiff's case in chief. (Code Civ. Proc., §§ 598.)

(2) To deny leave to amend. (Code Civ. Proc., § 473.)

(3) To deny the motion for preliminary injunction. (Code Civ. Proc., § 526.)

Explanation:

Motion to Bifurcate

The court is given great discretion in regard to the order of issues at trial: "The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order...that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case..." (Code Civ. Proc., § 598.) Equitable issues such as waiver are commonly bifurcated and tried first. (*Hoopers v. Dolan* (2008) 168 Cal.App.4th 146, 156-157.)

In December of 2017 plaintiff and defendants executed a settlement agreement resolving defendants' claims against plaintiff in Case No. 16CECG04166. The settlement agreement provided that all parties waived, released and discharged all claims and causes of action against each other, known or unknown and expressly acknowledged waiving all protections of Civil Code section 1542. While 16CECG04166 did not involve plaintiff's claims of sexual abuse, the waiver is extremely broad. It would be far more efficient to resolve the waiver defense first, as it may be unnecessary to hold trial of the sexual abuse claims if the waiver defense is successful.

Motion to Amend Complaint and Motion for Preliminary Injunction

Plaintiff moves to amend the complaint to add a third cause of action for fraudulent transfer under the Uniform Voidable Transactions Act ("UVTA"), Civil Code section 3439.04. The amendment would add a new party, plaintiff's brother and defendants' son, Roberto Perez Jr.

In moving to amend a pleading, the moving party “must” file a declaration that specifies: (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amended allegations were discovered, and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324(b).)

Criteria (1) and (2) are satisfied, but plaintiff does not offer satisfactory explanation for waiting until February of 2026 to seek to make this amendment. It appears that plaintiff has long been aware of the transfers of property that serve as the basis for the amendment. Plaintiff explains that the matter was on appeal from 2024 to early 2025, with the matter returned to this court's jurisdiction in April 2025 with the remittitur. Plaintiff simply states in his declaration that he thereafter “undertook further legal research to determine the proper procedural vehicle for asserting a statutory claim based on property transfers made to avoid creditors.” There is no showing that plaintiff acted diligently in seeking to make this amendment. Though he was aware of this issue, when plaintiff filed a motion for leave to file a Third Amended Complaint in September of 2025, he did not seek to make this amendment at that time, instead waiting another five months to seek to make this amendment, with trial approaching. Plaintiff does not make an adequate showing regarding Rule 3.1324(b)(3) and (4).

Courts are bound to apply a policy of great liberality in permitting amendments to the complaint “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice exists where the amendment would result in a delay of trial, along with loss of critical evidence, added costs of preparation, increased burden of discovery, etc. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.) Here, there is no indication of loss of evidence, but trial set to begin September 8, 2026. Amending the complaint now would necessarily require continuance of trial, as the new party would need to be served, and would have 30 days to amend the complaint. Defendants indicate they would challenge the amended complaint. Amending the complaint now would add costs of preparation, as the parties have already been gearing up for trial, and certainly further discovery would need to be conducted. Adequate prejudice is shown. The court intends to deny the motion to amend. Plaintiff will need to pursue this claim in a separate action.

The motion for preliminary injunction is premised on plaintiff being granted leave to file the amended complaint with the cause of action under the UVTA. The leave to amend is denied, the motion for preliminary injunction must be denied as well.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 8-18-26.
(Judge's initials) (Date)